Alabama Rules of Criminal Procedure

Rule 35. Costs for Court-Ordered Examinations and Evaluations, CourtAppointed Experts, and Court-Appointed Counsel.

No provision in these rules, including, but not limited to, provisions authorizing or requiring the court to order defendants to undergo examinations and evaluations, to appoint experts, or to appoint attorneys and approve expenses incurred in their representation of indigents, shall be construed to impose any obligation or liability on the Judicial Department for any costs associated therewith.

Committee Comments

Rule 35 ensures that these rules do not affect the present system designed to provide payment of costs for court-ordered actions and appointments. See, e.g., Ala.Code 1975, § 15-12-21. The rule also makes clear that the Judicial Department accepts no liability or obligation for any costs that arise from the execution or operation of these rules.